

any arrangement with the creditors, but for the mere convenience of the debtor himself, so that it is revocable by the debtor at any time until communicated to some creditor (*b*)—in that case can a *creditor*, taking out execution, levy his debt upon the property subject to the trust? It seems, though the deed is *voluntary*, yet it is not to be considered as fraudulent within the statute 13 Eliz. c. 5, and if so, the creditor cannot reach the property at *law* (*c*). However, the deed might perhaps be held to be invalid as against the creditor in a Court of equity (*d*).

7. **Post obit trusts.**—It has been doubted, whether the doctrine of revocability extends to a case where the trust is to come into operation only on the *death* of the settlor, and where subject to a trust for payment of debts the lands charged are conveyed by way of bounty to a third person, the presumption rather being that the creditors were also meant to be objects of the settlor's *bounty* (*e*).

8. **Doctrine not likely to be extended.**—The Courts at the present day consider the doctrine under which these deeds have been held revocable to have been carried far enough, and have expressed a disinclination to extend it (*f*).

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* SECTION III.

OF THE DUTIES OF TRUSTEES FOR PAYMENT OF DEBTS.¹

Duties of trustees.—Upon this subject we shall consider, *First. What debts* are to be paid; *Secondly. In what order*

(*b*) *Walwyn v. Coutts*, 3 Mer. 707; *Sim. N. S.* 90, 91; *Smith v. Hurst*, 1 Coll. 705.

(*c*) *Synnot v. Simpson*, 5 H. L. Cas. 141.

(*f*) *Wilding v. Richards*, 1 Coll. 659; *Kirwan v. Daniel*, 5 Hare, 499; *Simmonds v. Palles*, 2 Jon. & Lat. 495, 504; *Browne v. Cavendish*, 1 Jon. & Lat. 635; *Evans v. Bagwell*, 2 Conn. & Laws. 616.

(*c*) *Pickstock v. Lyster*, 3 M. & S. 371; *Estwick v. Caillaud*, 5 T. R. 420. But see *Owen v. Body*, 5 Ad. & Ell. 28.

(*d*) See *Mackinnon v. Stewart*, 1

¹ *Trustees for the payment of debts.*—In America all the property of a deceased person, whether real or personal, is liable for his debts, and the statutes of the various states make special provision for debts: generally, however, the personal property is primarily liable. Creditors of an estate are